

Law & Motion Tentative Rulings

September 28, 2026 8:30 a.m.

Tentative rulings are not posted in unlawful detainer cases.

Notice to prevailing parties: Local Rule 2.10.01 requires you to submit a proposed formal order incorporating, verbatim, the language of any tentative ruling – or attaching and incorporating the tentative by reference - or an order consistent with the announced ruling of the Court, in accordance with California Rule of Court 3.1312. **Such proposed order is required even if the prevailing party submitted a proposed order prior to the hearing with two exceptions: (1) in unopposed matters where the moving party has provided a detailed proposed order or JCC form of order, or (2) where the tentative is simply to “grant”.** Failure to comply with Local Rule 2.10.01 may result in the imposition of sanctions following an order to show cause hearing, if a proposed order is not timely filed.

Pena v. American Honda Motor Co. (26CV00271)

Plaintiff's Motion to Compel Further Responses to Request for Production of Documents, Set One

The motion is granted. Defendant shall serve verified code-compliant further responses and production to request for production (RPD) nos. 1, 3-4, 7, 10, 13, and 23-26, 28, and 30 no later than October 30, 2026. Defendant's further responses shall identify which documents are responsive to which requests. If any documents are withheld pursuant to any privilege, defendant shall also serve a privilege log. Should any discovery response be characterized as containing trade secrets or proprietary information, the information shall be provided pursuant to a protective order.

Based on the parties' separate statements and pleadings, it appears all of the requests are either directly relevant to plaintiff's claims or may lead to relevant evidence. "In the context of discovery, evidence is 'relevant' if it might reasonably assist a party in evaluating its case, preparing for trial, or facilitating a settlement. Admissibility is not the test, and it is sufficient if the information sought might reasonably lead to other, admissible evidence." (*Glenfed Development Corp. v. Superior Court* (1997) 53 Cal.App.4th 1113, 1117.)

RPD nos. 1, 3-4, 7, and 10 seek records related to the subject vehicle, so they are obviously discoverable. RPD no. 13 seeks communications between plaintiff and defendant, also discoverable. RPD nos. 23-26 and 28 seek policies related to various events in the customer

complaint process, also discoverable. RPD no. 30 seeks substantially similar complaints about other 2025 Honda vehicles. Since information about the same year, make and model of vehicles purchased in California as plaintiff's vehicle is pertinent to this case, the court limits the response to RPD no. 30 to 2025 Honda Civics.

Further responses and records are not ordered for RPD nos. 27 and 29 since defendant has responded that it does not have responsive documents.

Defendant claims it produced all non-confidential and confidential documents with responses by June 15, 2026, but plaintiff insists there are certain documents that have not been produced. (Reply at pp. 3-5.)

Tan v. Merrill (26CV00208)

Plaintiff's Motion for Protective Order

The motion is denied without prejudice. In the event the parties cannot agree to deposition accommodations supported by a doctor's note from plaintiff's treating physician, plaintiff may renew the motion.

Plaintiff is self-represented and sued defendant related to a motor vehicle collision. The complaint fails to include any details of the crash (date, time, drivers, location, etc.). The traffic collision report indicates both cars were driven from the scene, that plaintiff was at fault for failing to yield in a left or u-turn, and it was a low-speed impact. (Schmitt Declaration, Exhibit D.)

The medical records submitted by plaintiff supporting this motion reveal that the accident happened on January 11, 2026, and plaintiff was treated at Dominican Hospital the same day for back pain, cervical strain, hypertension, dorsalgia (back pain), and muscle strain. There were no fractures, subluxations, or abnormalities of plaintiff's spine based on the CT scan and xrays conducted that day. The emergency department record describes the collision as "motor vehicle crash – minor." (Declaration of Tan.) Plaintiff's medical records show treatment in Spring 2026 at various locations for post-concussion syndrome, loss of consciousness (potential seizure), and acute psychosis. Plaintiff was placed on a 14-day W&I §5250 hold in May 2026. In June 2026, plaintiff was treated for fainting and brain fog following an emergency room admission.

The medical records indicate plaintiff reported a diagnosis of traumatic brain injury (TBI), and a diagnosis of mild TBI on March 17, 2026. The psychiatric and psychotherapy

records submitted by plaintiff indicate various diagnoses of anxiety, depression, and PTSD, but not TBI. Plaintiff's February 2026 brain CT indicated no acute intracranial hemorrhage, fluid collection, or fracture. Plaintiff's April 2026 brain MRI was "unremarkable."

Plaintiff seeks an order limiting the deposition sessions to two hours, with breaks every 20 to 30 minutes, or more frequently if medically necessary, immediate suspension of questioning depending on symptoms, and permitting the deposition to be completed in multiple short sessions.

Defendant does not dispute that plaintiff may experience health difficulties or symptoms requiring accommodation, but that the medical records thus far do not support the order sought. Defendant argues there is as yet no medical recommendation limiting the deposition session lengths based on plaintiff's health status. Defendant is willing to work with plaintiff and notes there is currently no noticed deposition at issue.